

Piracy is Almost Always Ethical

Change my mind: Argumentative Essay

Piracy is more ethical than what modern corporations admit, it is more ethical than what these multimillion-dollar corporations do. A short peek at the current state of digital media shows what went wrong. Digital media and the corporations behind them are so incredibly consumer-unfriendly that it almost seems like the common man has to resort to piracy especially when the companies behind their favourite media are treating them like garbage.

Ubisoft is a video game company that comes to mind when discussing video game ethics, as they are the main example of corporate greed. Ubisoft's The Crew was a beloved racing game that was delisted from all digital storefronts in 2023, with servers shutting down in 2024, which made it completely inaccessible. Players who bought it thought they owned the game, but only purchased a license when buying the game not an unfettered ownership right in the game. The backlash from the whole fiasco started a legal campaign, the "Stop Killing Games Movement," which advocated for game preservation laws in the EU.

On a different side of modern media comes the streaming trap, subscriptions that make you pay more for less. The original promise of streaming services was fairly simple: you pay for one affordable subscription and cancel your expensive cable subscription.

The problem of fragmented content comes into play as it is the main cause of harm to consumers. Content is often deliberately scattered across competing platforms simply to force the common people to buy multiple subscriptions to access the shows they want to watch. Think Disney+, HBO Max, Paramount+, Amazon Prime, Netflix, and those services are not even complete there are plenty more streaming services that claim to provide on-demand access to movies and TV shows.

As the industry continues to manufacture systems that maximise extracting money from consumers, piracy becomes a better solution, as it allows a working-class person in any country to access media or culture that was previously locked away behind a massive paywall.

Michel **Foucault**'s work on information and power is relevant to this argument because streaming services gatekeep media, and it becomes a tool of control, and access to information is a moral issue, as whoever controls information controls culture.

As per the final argument point, we take a look back at the gaming industry. Denuvo DRM is a software that companies use to control how digital content is managed, it punishes paying customers by degrading game performance and potentially transmitting device data. Players pay \$70 for games that run poorly and own only licenses, not actual copies.

The arguments paint a clear picture of my thoughts and the honest sentiments of many consumers of the industry, but piracy is not without its criticisms. The main criticism that comes into play is that "**Piracy is stealing**," the good old "You wouldn't download a car" scenario, and to resolve that, people have to acknowledge that piracy is not theft, it is copyright infringement, theft removes a physical object, while piracy merely duplicates a file, no multimillion dollar company is gonna lose something, they are still gonna have sales.

The second argument is that "**Piracy hurts indie developers/filmmakers**." This is the best criticism against piracy, it is a fair position as small studios do not have the budget that EA or Ubisoft have, they have way less and charge way less, and this is where I bring up why it's "**Almost Always**" and not just "**always**." Although some developers, such as Tynan Sylvester and Arsi Patala share the sentiment that piracy is somewhat fine as it brings exposure, it is still bad for indie developers as they need all the help they can get.

There are plenty more valid criticisms that can be answered, but these are the main two that seem to pop up when relating to ethics. To end this paper, Gabe Newell, co-founder of Valve, states that "**Piracy is almost always a service problem and not a pricing problem**."